

SENATE BILL 1794

By Reeves

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 44, relative to dangerous dogs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 44, Chapter 17, is amended by adding
the following new part:

44-17-801.

As used in this part:

(1) "Animal control authority" means the municipal or county animal
control office with authority over the area where the dog is kept or the sheriff in
an area with no animal control office;

(2) "Bodily injury" means the same as defined in § 39-11-106;

(3) "Dangerous dog" means a dog that:

(A) Makes an unprovoked attack on a person that causes bodily
injury and occurs in a place other than an enclosure in which the dog was
being kept and that was reasonably certain to prevent the dog from
leaving the enclosure on its own; or

(B) Commits unprovoked acts in a place other than an enclosure
in which the dog was being kept and that was reasonably certain to
prevent the dog from leaving the enclosure on its own and those acts
cause a person to reasonably believe that the dog will attack and cause
bodily injury to that person;

(4) "Dog" means a domesticated animal that is a member of the canine
family;

(5) "Owner" means a person who owns or has custody or control of a dog; and

(6) "Secure enclosure" means a fenced area or structure that is:

(A) Locked;

(B) Capable of preventing the entry of the general public, including children;

(C) Capable of preventing the escape or release of a dog;

(D) Clearly marked as containing a dangerous dog; and

(E) In conformance with the requirements for enclosures established by the local animal control authority.

44-17-802.

(a) No later than thirty (30) days after an owner learns that the owner's dog is a dangerous dog, the owner must:

(1) Register the dangerous dog with the animal control authority for the area in which the dog is kept as provided in § 44-17-807;

(2) Restrain the dangerous dog at all times on a leash in the immediate control of a person or in a secure enclosure;

(3) Obtain liability insurance coverage or show financial responsibility in an amount of at least one hundred thousand dollars (\$100,000) to cover damages resulting from an attack by the dangerous dog causing bodily injury to a person and provide proof of the required liability insurance coverage or financial responsibility to the animal control authority for the area in which the dog is kept; and

(4) Comply with any applicable municipal or county regulation, requirement, or restriction on dangerous dogs.

(b) The owner of a dangerous dog who does not comply with subsection (a) shall deliver the dog to the animal control authority no later than thirty (30) days after the owner learns that the owner's dog is a dangerous dog.

(c) If, on application of any person, a court finds that, after notice and hearing as provided by § 44-17-803, the owner of a dangerous dog has failed to comply with subsection (a) or (b), the court shall order the animal control authority to seize the dangerous dog and issue a warrant authorizing the seizure. The animal control authority shall seize the dog and shall provide for the impoundment of the dog in secure and humane conditions.

(d) The owner shall pay any cost or fee assessed by the municipality or county related to the seizure, acceptance, impoundment, or destruction of the dog. The governing body of the municipality or county may prescribe the amount of the fees.

(e)

(1) Subject to subdivision (e)(2), the court shall order the animal control authority to humanely destroy the dog if the owner has not complied with subsection (a) before the eleventh day after the date on which the dog is seized or delivered to the authority. The court shall order the authority to return the dog to the owner if the owner complies with subsection (a) before the eleventh day after the date on which the dog is seized or delivered to the authority.

(2) Notwithstanding another law or local regulation:

(A) Any order to destroy a dog is stayed for a period of ten (10) calendar days from the date the order is issued, during which period the dog's owner may file a notice of appeal; and

(B) A court may not order the destruction of a dog during the pendency of an appeal under § 44-17-803.

(f) The court may order the humane destruction of a dangerous dog if the owner of the dog has not been located before the fifteenth day after the seizure and impoundment of the dog.

(g) For purposes of this section, a person learns that the person's dog is a dangerous dog when:

(1) The owner knows of an attack described in § 44-17-801(3);

(2) The owner receives notice that a court has found that the dog is a dangerous dog under § 44-17-802(c); or

(3) The owner is informed by the animal control authority that the dog is a dangerous dog.

44-17-803.

(a) If a person reports an incident described in § 44-17-801(3), then the local animal control authority may investigate the incident. If, after receiving the sworn statements of any witnesses, the animal control authority determines the dog is a dangerous dog, then the animal control authority shall notify the owner in writing of the determination.

(b) Notwithstanding another law, including a municipal ordinance, an owner, not later than the fifteenth day after the date the owner is notified that a dog owned by the owner is a dangerous dog, may appeal the determination of the animal control authority to a general sessions court.

(c) To file an appeal under subsection (b), the owner must:

(1) File a notice of appeal of the animal control authority's dangerous dog determination with the court;

(2) Attach a copy of the determination from the animal control authority;
and

(3) Serve a copy of the notice of appeal on the animal control authority by mailing the notice through the United States Postal Service.

(d) An owner may appeal the decision of the general sessions court under subsection (b) in the manner described by § 44-17-806.

44-17-804.

(a) A person may report an incident described by § 44-17-801(3) to a general sessions court. The owner of the dog shall deliver the dog to the animal control authority not later than the fifth day after the date on which the owner receives notice that the report has been filed. The authority may provide for the impoundment of the dog in secure and humane conditions until the court orders the disposition of the dog.

(b) If the owner fails to deliver the dog as required by subsection (a), then the court shall order the animal control authority to seize the dog and shall issue a warrant authorizing the seizure. The animal control authority shall seize the dog or order its seizure and shall provide for the impoundment of the dog in secure and humane conditions until the court orders the disposition of the dog. The owner shall pay any cost incurred in seizing the dog.

(c) The court shall determine, after notice and a hearing as provided in § 44-17-805, whether the dog is a dangerous dog.

(d) The court, after determining that the dog is a dangerous dog, may order the animal control authority to continue to impound the dangerous dog in secure and humane conditions until the court orders disposition of the dog under § 44-17-802 and the dog is returned to the owner or destroyed.

(e) The owner shall pay any cost or fee assessed under § 44-17-802(d).

44-17-805.

(a) The court, on receiving a report of an incident under § 44-17-804 or on application under § 44-17-802(c), shall set a time for a hearing to determine whether the dog is a dangerous dog or whether the owner of the dog has complied with § 44-17-802. The hearing must be held not later than the tenth day after the date on which the dog is seized or delivered.

(b) The court shall give written notice of the time and place of the hearing to:

(1) The owner of the dog or the person from whom the dog was seized;

and

(2) The person who made the complaint.

(c) Any interested party, including the county or city attorney, may present evidence at the hearing.

(d) The court shall determine the estimated costs to house and care for the impounded dog during the appeal process and shall set the amount of bond for an appeal adequate to cover those estimated costs.

(e) An owner or person filing the action may appeal the decision of the general sessions court in the manner described by § 44-17-806.

44-17-806.

(a) A party to an appeal under § 44-17-803(d) or a hearing under § 44-17-805 may appeal the decision to the circuit court and is entitled to a jury trial on request.

(b) As a condition of perfecting an appeal, not later than the tenth calendar day after the date the general sessions court issues a decision, the appellant must file a notice of appeal and, if applicable, an appeal bond in the amount determined by the general sessions court.

(c) Notwithstanding another law to the contrary, a person filing an appeal from a general sessions court under subsection (a) is not required to file a motion for a new trial to perfect an appeal.

(d) A decision of a circuit court under this section may be appealed in the same manner as an appeal for any other circuit court case.

(e) Notwithstanding another law to the contrary, a circuit court has jurisdiction to hear an appeal filed under this section.

44-17-807.

(a) Until removed from the registry pursuant to subsection (f), an animal control authority for the jurisdiction in which a dangerous dog is kept shall annually register the dangerous dog if the owner:

(1) Presents proof of:

(A) Liability insurance or financial responsibility, as required by § 44-17-802;

(B) Current rabies vaccination of the dangerous dog; and

(C) The secure enclosure in which the dangerous dog will be kept; and

(2) Pays an annual registration fee of fifty dollars (\$50.00).

(b) The animal control authority shall provide to the owner registering a dangerous dog a registration tag. The owner must place the tag on the dog's collar.

(c) If an owner of a registered dangerous dog sells or moves the dog to a new address, the owner, not later than the fourteenth day after the date of the sale or move, shall notify the animal control authority for the jurisdiction in which the new address is located. On presentation by the current owner of the dangerous dog's prior registration

tag and payment of a fee of twenty-five dollars (\$25.00), the animal control authority shall issue a new registration tag to be placed on the dangerous dog's collar.

(d) The owner of a registered dangerous dog shall notify the animal control authority in which the dangerous dog is registered of any attack the dangerous dog makes on people.

(e) The animal control authority shall make the registry available for public inquiry on the internet. The public registry must include the name of the dangerous dog and the owner, the date the dog was initially required to register, and the owner's address.

(f) The animal control authority shall remove a dangerous dog and the owner from the registry three (3) years after the dog's initial registration date, if the dangerous dog has not been found to have engaged in an attack described in § 44-17-801(3) while registered with the animal control authority. If the dangerous dog has been found to have engaged in an additional attack while registered with the animal control agency, then the dog must remain on the registry for an additional three (3) years from the date of the subsequent attack.

44-17-808.

(a) A person who owns or keeps custody or control of a dangerous dog commits an offense if the person fails to comply with § 44-17-802 or § 44-17-804(a).

(b) Except as provided by subsection (c), an offense under this section is a Class C misdemeanor.

(c) A second or subsequent offense under this section is a Class B misdemeanor.

44-17-809.

(a) It is a defense to prosecution under § 44-17-808 that the person is a veterinarian, peace officer, person employed by a recognized animal shelter, or person employed by the state or a political subdivision of the state to deal with stray animals and has temporary ownership, custody, or control of the dog in connection with that position.

(b) It is a defense to prosecution under § 44-17-808 that the person is an employee of the department of correction or a law enforcement agency and trains or uses dogs for law enforcement or corrections purposes.

44-17-810.

This part does not prohibit the destruction of a dog causing death or serious injury to a human pursuant to the process authorized by § 44-17-120.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.